

# TERMS OF SERVICE

CloudSync Platform - Version 3.2

Last Updated: December 1, 2024

## 1. ACCEPTANCE OF TERMS

By accessing or using the CloudSync platform ("Service"), operated by CloudSync Technologies Ltd., registered in Dublin, Ireland (Company No. IE-789456), you agree to be bound by these Terms of Service ("Terms"). If you are accepting these Terms on behalf of an organization, you represent that you have authority to bind that organization.

These Terms constitute a legally binding agreement between you ("User") and CloudSync Technologies Ltd. ("Company", "we", "us", or "our"). IF YOU DO NOT AGREE TO ALL OF THESE TERMS, DO NOT USE THE SERVICE.

## 2. SERVICE DESCRIPTION

CloudSync provides cloud-based file synchronization, backup, and collaboration tools. The Service includes:

- a) File storage and synchronization across devices (up to 5TB per account)
- b) Real-time document collaboration for teams
- c) Automated backup with point-in-time recovery (30-day retention)
- d) End-to-end encryption (AES-256) for data at rest and in transit
- e) API access for third-party integrations
- f) Administrative console for enterprise accounts

## 3. DATA PROCESSING AND PRIVACY

We process personal data in accordance with the EU General Data Protection Regulation (GDPR), the California Consumer Privacy Act (CCPA), and applicable data protection laws. Our Data Processing Agreement (DPA) is incorporated by reference.

**Data Residency:** Users may select data storage regions (EU, US-East, US-West, Asia-Pacific). Data will not be transferred outside the selected region without explicit consent.

**Data Retention:** Upon account termination, user data is retained for 90 days, after which it is permanently and irreversibly deleted from all systems including backups.

## 4. LIMITATION OF LIABILITY

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, CLOUDSYNC TECHNOLOGIES LTD. SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING WITHOUT LIMITATION, LOSS OF PROFITS, DATA, USE, GOODWILL, OR OTHER INTANGIBLE LOSSES.

OUR TOTAL AGGREGATE LIABILITY FOR ALL CLAIMS RELATED TO THE SERVICE SHALL NOT EXCEED THE AMOUNT PAID BY YOU IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

Nothing in these Terms excludes or limits liability for death or personal injury caused by negligence, fraud, or fraudulent misrepresentation.

## 5. GOVERNING LAW AND JURISDICTION

These Terms shall be governed by and construed in accordance with the laws of Ireland, without regard to conflict of law principles. Any disputes arising from these Terms shall be subject to the exclusive jurisdiction of the courts of Dublin, Ireland.

For EU consumers: Nothing in these Terms affects your statutory rights under applicable consumer protection laws of your country of residence.

For US users: Any dispute shall be resolved through binding arbitration under the rules of the American Arbitration Association, unless you opt out within 30 days of account creation.